

“ jurisdiction ; to controversies to which the United
 “ States shall be a party ; to controversies between
 “ two or more states, between a state and citizens
 “ of another state, between citizens of different
 “ states, between citizens of the same state claiming
 “ lands under grants of different states, and between
 “ a state or the citizens thereof, and foreign states,
 “ citizens and subjects.” This constitutes the entire
 mass of the judicial authority of the union. Let us
 now review it in detail. It is then to extend,

First. To all cases in law and equity arising under
 the constitution and the laws of the United States. This
 corresponds to the two first classes of causes which
 have been enumerated as proper for the jurisdiction
 of the United States. It has been asked what is meant
 by “ cases arising under the constitution,” in con-
 tradistinction from those “ arising under the laws of
 “ the United States.” The difference has been
 already explained. All the restrictions upon the
 authority of the state legislatures, furnish examples
 of it. They are not, for instance, to emit paper
 money ; but the interdiction results from the consti-
 tution, and will have no connection with any law of
 the United States. Should paper money, notwith-
 standing, be emitted, the controversies concerning
 it would be cases arising upon the constitution, and
 not upon the laws of the United States, in the ordi-
 nary signification of the terms. This may serve as
 a sample of the whole.

It has also been asked, what need of the word
 “ equity” ? What equitable causes can grow out of
 the constitution and laws of the United States ?
 There is hardly a subject of litigation between indi-
 viduals. which may not involve those ingredients of
fraud, accident, trust or hardship, which would render
 the matter an object of equitable, rather than of legal
 jurisdiction, as the distinction is known and esta-
 blished in several of the states. It is the peculiar
 province, for instance, of a court of equity to relieve
 against